

THE DELINQUENT

Vol IV, No. 5

May, 1914

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DELINQUENT (VOL. IV, NO. 5), MAY, 1914 ***

VOLUME IV, No. 5.

MAY, 1914

THE DELINQUENT

(FORMERLY THE REVIEW)

**A MONTHLY PERIODICAL, PUBLISHED BY
THE**

NATIONAL PRISONERS' AID ASSOCIATION

AT 135 EAST 15th STREET, NEW YORK CITY.

THIS COPY TEN CENTS.

ONE DOLLAR A YEAR

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SAFEGUARDING OUR YOUTHS FROM PRISON

BY A PRISON GRADUATE

[Written for The Delinquent by a "Long-Termer."]

One dull grey morning during the closing days of September, 1912, I sat poring over the records of the — State Prison at a desk in the administrative offices where I was employed, when the shrill voice of a woman rang out on the street directly outside my barred window, attracting the startled attention of the prison clerk, the doorkeeper and myself. They rushed into the room past me and raised the sash. And what a sight met our eyes! There, beneath the stone ledge, stood a poor wild-eyed Slav woman, tying a stout rope from behind both wrists of her son, a lad of about twelve years, punctuating each knot with cuffs on his ears and wild gesticulations and admonitions in her native tongue and in broken English.

"Now you go to school, huh?" the woman cried when she had tied the last knot behind the lad's back. But the little fellow seemed as unmoved and dogged as she was excited and persistent. With another cuff behind his ear she sent him sprawling along the sidewalk. But never a whimper from the lad. The doorkeeper, accustomed as he is to the hardest of characters that pass in and out the grey prison doors, and to pathetic scenes on visiting days, melted at the sight.

"What are you doing to that boy?" he shouted at the woman from the prison window. She turned quickly, and with eyes ablaze, retorted: "Dot's not you' business!" and then gave her attention to the boy, cuffing and pushing him on ahead of her. "You'll get arrested, if you don't stop treating your boy that way!" the doorkeeper warned her. But the woman kept on cuffing and pushing the little fellow while shouting back over her shoulder as she moved away: "Dot's not you' business!"

The doorkeeper and clerk shook their heads, looked at each other and left the office in silence. We were stunned by what we had seen, and marvelled that such a thing could happen in the capital city of one of our foremost

states in this civilized century which boasts its wonderful advancement in every branch of life.

“Is that mother right?” I asked myself. “Will her boy bend and become a dutiful son and worthy citizen? Or will he mistake his mother’s good intentions, administered so cruelly, run away from home and finally land here in prison?”

From whatever side I viewed it, the situation was pathetic. The poor mother, no doubt, had great hopes for her boy through giving him an education which, perhaps, she and her laboring husband were denied. But what boy, with his misdirected faculties ahunger for adventure and mischief, can see things with the mature eyes of an ambitious parent? Would that the Slav woman might have known how much of the rod (in this case the rope) to administer and how much to spare in her boy’s case! But what parent knows?

I kept thinking of that Slav mother dragging her child along the street on the end of a rope; thinking of the stubbornness of a boy, so tender in years, yet so indifferent to such barbarous treatment. I thought also of how much good so self-willed a lad was capable if properly guided; how much harm, if nourished by evil influences. My mind travelled into the interior of the prison, whither so many men and women have drifted and are still drifting, from just such a start as that truant boy’s. Not that their parents had tried to put their good intentions into execution so barbarously, but the fatal misunderstanding between parent and child was there just the same. I have seen men come in, serve their time, go out and then come back again and again for similar offenses. And yet they were once good innocent boys, born of good, industrious and well-meaning parents, who had great hopes for their future careers. In the end Society suffered from the repeated damage they had done, their parents grieved in disappointment and sorrow, and the erring boys finally become social outcasts and parasites, of no use to themselves nor to any one else. Surely, thought I, there must be something radically wrong or stupid with a world that permits so much damage and misery to go on unchecked.

I thought of the terrible destruction caused by floods in times past, and of the wonderful good that came from those same bodies of water when harnessed to machinery or when floating our great ships, laden with all the

necessaries of life, to all quarters of the globe. The same is true with respect to the possibilities—good and bad—of all mankind. The population of our prisons is simply the misguided flood of Society's stream, destroying everything that obstructs it, and polluting itself as it courses along its aimless path. The officials of penal institutions are doing their best to guide the wayward and polluted stream into cleaner channels of usefulness; but penal institutions are, at best, but weak dams, unable to cope with the situation unless something be done to check the cause, or source, of the flood. That crime is increasing, criminals becoming bolder, the prison population becoming larger each year, and new and larger prisons are being built, is ample proof of this contention. Pondering these matters, vital to society, to fond and ambitious parents and to growing children, my thoughts finally crystallized themselves into a plan that should at least prevent many future youths from swelling Society's destructive and polluted stream of crime.

Experience has shown how the reputations of many good men and women have been blasted in moments of temporary weakness when temptation beset them. They may have gone through life up to that time with little or no temptation, knowledge of the wickednesses of the world being withheld from them by watchful parents. Many have gone on offending for a long time before they are exposed; while others, tempted on all sides from youth upwards to commit crime, resist the temptations repeatedly by sheer force of character and will power. The tendency of youths in general, however, is in the direction of mischief when curiosity and temptation beckon; and from the knowledge that our faculties grow strong in proportion to our exercise of them, we may conclude that it is far wiser that children be taught to cultivate the power of resistance to evil than that that knowledge of evil be withheld from them. We know not how or when temptation may overcome us or those dear to us; but we do know that in the lives of even the worst of those that have fallen from grace, *there was a first fall!* And the crucial time, therefore, to begin crime prevention is *before that first fall*, during the time of youth.

From what has been said it might be urged that crime prevention should begin in and be confined to the home. No one will deny that the home is the most potent factor in preserving the peace and purity of any community. We know if our youths will but follow the teachings of the religions of their

parents, they will not fall into the error and follow lives of crime. But religion is not practiced in every home; and all parents do not know how to influence or control the minds of their children any more than did the poor Slav woman, when in desperation, she dragged her boy to school on a rope. Again, many youths turn out badly in spite of religious parents and good homes, because of vicious associations abroad. For these reasons, then, I believe that the problem of crime prevention must be solved in our schools and colleges, leaving to parents the matter of selecting neighborhood companions of their children and of selecting respectable neighborhoods in which to bring them up.

Because the children of our public schools represent so many religious denominations, it has been deemed politic to exclude religious teachings therefrom; and the child, in consequence, is seriously handicapped. There is a common ground, however, upon which all schools and colleges, private, parochial and public may unite to make up considerably for this handicap to the habit-forming youth. And that is by establishing a system wherein teacher and pupil may co-operate in mutual discussion of the various temptations that befall men and women from time to time; what one should do under given circumstances; the penalties of indulgence in evil; and the benefits of following resistance.

The teachers should not confine themselves to lectures on the abstract qualities of truth, honesty, purity, justice, etc., as these are usually wasted when delivered to children. Let them take concrete examples from the columns of our newspapers and impress upon the pupils the moral lesson in each selected article, and thereby cause the press to become a moral agency instead of a contaminator of weak youthful minds. Let them discuss such matters as quarrelling, slander, intoxication, fighting (as distinguished from manly defense), gambling, smuggling, bribery, thefts from parent's purses, from pantries, from the family's storekeepers, picking pockets on the streets, all sorts of abuses and impurities, and the terrible consequences these lead up to. There are innumerable examples to choose from in our daily life. The teacher might formulate a series of real or imaginary situations and catechise the pupils as to how they would act when confronted by them in real life. These situations should be made dramatic enough to engage the full attention of the children's eyes, ears, minds and wills, so as to leave lasting impressions upon them.

Parties of children could be formed to visit local jails and prisons, where the teachers could hold up mirrors to them of young men, husbands and fathers being torn from their loved ones and thrown into prison; of the long hours of bitter anguish spent in solitary cells year after year. Make this penal sacrifice of suffering mortals count for something more than mere restraint and punishment of crime. Make it the price paid in advance for the saving of youths in the future. The pupils should be made to write essays on the subject of temptations met and resisted, to discuss the traits of one another frankly, to commend the good and discourage the vicious among their number; thus imbuing the whole class with a feeling in common of protective fellowship.

It is the right of every child to be safeguarded in a way that it may not, through ignorance or lack of proper guidance and warning, be doomed to spend its life behind prison bars. It will surely be an agreeable and noble task for our teachers to so safeguard the child. In this way, it may fall to the lot of one of them to prevent that poor Slav boy from ending his days with another rope about his neck. Who knows?

THE MARYLAND PENITENTIARY

The annual report of the Maryland Penitentiary for the year 1913, which has recently been issued, must be of particular interest to all those that have followed the fortunes of that penitentiary during the past years. The report is full of meat. But most interesting perhaps, is the list of reforms instituted during the year, as given on page 14.

Night schools have been established for both male and female illiterates. The lock-step has been abolished. The uniforms of the male prisoners have been changed from stripes to dark grey, and those of the female prisoners from blue check to dark grey. China dishes and aluminum spoons are used instead of tinware. The male inmates make a detour of the grounds in going to dining room and shops, and are permitted to exercise in the open air for three-quarters of an hour on Sundays. They march two abreast, and each inmate is allowed to converse with his companion. The female prisoners are allowed to exercise in the yard three times a day on week days, and on Sundays for about two hours.

The convalescent sick are allowed to walk around the grounds the greater part of the day, when the weather is favorable. The prisoner's hair is never clipped, except occasionally for sanitary reasons when received. Inmates now receive two shaves a week and one haircut a month *gratis*. They are allowed to smoke in their rooms. They are permitted to converse in a low tone in the dining room. Instead of one letter a month they now have the privilege of writing every ten days. Entertainments are given on July 4th, Thanksgiving and Christmas. The dark cell, whipping and cuffing-up have been abolished. Instead of the dark cell a well-ventilated room is now used, in which a bed and a blanket are placed at night. The punishments now in vogue consist of bread and water diet, and the taking away of all privileges, the forfeiture of commutation and in extreme cases, compelling the

prisoner who is locked in cell to stand at the door without tension, during working hours.

A list is sent to the Prisoners' Aid Association, on the 15th of each month, so that, if necessary, provision can be made for their care until they find employment. An interne has been appointed, thus giving the institution the services of a physician instantly in emergency cases. This work was formerly done by a prisoner. A steam chest has been installed, so that all clothes from the hospital can be disinfected and washed within the hospital grounds.

Surely, where so many and such reforms have been instituted during a year there must have been room for reform, and congratulations for the reforms are due.

HUMANIZING A COURT

BY JAMES A. COLLINS
Former City Judge of Indianapolis.

[A paper read before the National Conference of Charities and Correction, Memphis, Tenn., May 12, 1914.]

It is not my purpose to present a theory for dealing with the poor and unfortunate who make up the daily toll of police duty, but the actual working of a definite plan.

Probation has been defined as a judicial system, under which an offender against penal law, instead of being imprisoned, is given an opportunity to reform himself under supervision and subject to conditions imposed by the court, to the end that if he makes good no penalty will be imposed.

The enactment of a law by the legislature of Indiana in 1907, under which courts may exercise the right to suspend sentence or withhold judgment in the case of adults, made possible the application of the probation system in the administration of justice in circuit and criminal courts and courts having concurrent jurisdiction.

The probation method of dealing with minor offenders in our State was an attempt to follow the spirit of the constitutional provision that "the penal code shall be founded on the principles of reformation and not of vindictive justice."

The aim of the City Court of Indianapolis during my term of four years was to administer justice tempered with humanity. The welfare of unfortunates, and the saving of women and children from hunger and want, was to the court a matter of greater moment than the piling up of a vast amount of fines and costs. If the efficiency of the court was to be determined by the number of dollars and cents, wrested from offenders, then the constitutional provision above referred to should be rewritten and the law of 1907 repealed. Such a step, however, would be to turn back the dial of human progress one hundred years. So long as the constitution and the laws of the

State permit, the people will demand that justice shall be administered upon human lines.

In order that the best possible results might be obtained both for society and the individual, the probation system as established in the City Court of Indianapolis contemplated the following:

1. The suspended sentence.

The power to suspend sentence where the circumstances seemed to justify has saved many novices in crime from undergoing the harsh punishment that would otherwise be meted out to them, and that seems to be contrary to the constitutional provision that "all penalties shall be proportioned according to the nature of the offense." As has been well said: "The system under which a father and husband pleading guilty to a charge of larceny, based upon the taking of a bundle of oats or a loaf of bread, was sent up, was often sure to work brutal injustice. That it continued as long as it did is a remarkable fact."

During my term I suspended judgment in 700 cases and withheld judgment in 7559. Of this latter class less than 3 per cent. were returned for a second or subsequent offense.

While there is no provision under the law for the employment of paid probation officers, adequate supervision in 575 cases was made possible by good citizens, volunteering to serve in that capacity. These probationers were required to furnish the court a monthly report signed by the probation officer. Time will not permit the details of these reports. Each tells its own story of heroic efforts toward right living.

2. Paying fines on installments.

The payment of money fines on installments was a new department in the administration of justice. The old method of collecting money fines which compelled the defendant to pay or replevy the same the moment he was fined was always a source of great hardship on the poor. It was unreasonable to expect a common laborer arrested late at night, and convicted in the morning, to be prepared to settle with the State. If he was

unable to pay or make arrangements to have his fine staid for the statutory period, he was sent to prison, not because the court had given him a term of imprisonment, but because he was poor, which is in effect imprisonment for debt. The pitiable scenes of wives and mothers and sobbing children crowding the corridors of the court, pleading for the release of a husband or father, against whom a money fine had been assessed and who was utterly without money to stay or pay the same, was a powerful argument in favor of a plan that would relieve such a deplorable situation.

The power to parole a misdemeanant carried with it the power to direct him to pay into the probation department a dollar a week toward the satisfaction of a fine and costs to be assessed against him when the final payment was made.

Such a plan as this requires no legislative action and could be introduced into any court where the judge has such powers as are granted the courts of Indiana.

In city courts, defendants may be divided into three classes:—Those who can pay the fines assessed against them; those who would pay if they had a chance; and those who wouldn't pay if they could and couldn't if they would. The middle class represents very largely mechanics, clerks and laborers, in no sense criminals, but who for some breach of the peace are brought into court and who are generally of a deserving character. It is to this class that the work has been directed. A money fine is their punishment, but instead of imprisoning them, they were paroled with instructions to pay into the probation department each week one dollar or as much as could be spared from the family treasury, until the amount indicated by the court is paid in full. During the four years that this plan was in operation these probationers paid into the court \$34,014.

Out of 3832 persons placed on probation to pay fines, 3220 paid their fines and costs in full, while 102 were given credit for partial payments and committed to serve out the balance. However, 205 were unable to pay anything and were committed to the jail or workhouse. In 152 cases, the circumstances of the families were such that the court felt justified in withholding judgment rather than committing the defendants. Out of the entire number placed on probation, 143 did not live up to their agreement with the court, and re-arrests were ordered in each of those cases.

The plan operated to the benefit of the individual in several ways. It saved him his employment; it saved his family from humiliation and disgrace; better than all, it saved his self-respect.

3. Drunkenness and the Pledge System.

No unfortunates appeal more strongly to the court than the victims of the liquor habit. In all cases of first offenders charged with being drunk, and where the defendant had others dependent upon him for support, the court made it a condition on withholding judgment or suspending the sentence that the defendant take the pledge for a period varying from six months to one year. Three hundred and eighty-two pledges were taken, all of which were kept faithfully but 27.

When the family or relatives could afford it, persons were sent to institutions for treatment, and the records show but one failure. Where the financial condition of the defendant was such that he could not pay for the treatment, arrangements were made for the payment of the money into the probation department in weekly installments, thus assuring the defendant the benefit of the treatment and the institution the satisfaction of its debt. With the assistance of W. H. Roll, a volunteer probation officer, supervision was successfully provided for 136 men charged with drunkenness who had reached the down-and-out stage. Without friends or relatives, and in many instances unemployed, these men were drifting into a condition where they would soon become public charges. The reports furnished the court show that this timely help and assistance was the means of saving these men to useful citizenship.

In the severe cases, where the defendant was bordering on delirium tremens, he was committed to the workhouse and the superintendent informed of his condition. While there were no special arrangements for the treatment of inebriates at the workhouse, the superintendent successfully provided a separate department in the wing formerly used as the woman's prison. These cases were thoroughly examined by the physician in charge, and such medical and special attention was given to them as the circumstances seemed to justify. While these facilities were inadequate, yet a splendid work was done among this class of unfortunate and harmless offenders.

4. Medical and Surgical Treatment.

It was not an infrequent experience for the court to find persons charged with offences of a character that disclosed physical or mental defects. Arrangements were always made for medical care and treatment. In meeting the problem presented by such conditions the court had the co-operation and assistance of the superintendent of the City Hospital, as well as some of the best known physicians and surgeons of Indianapolis.

5. Imprisonment of Minors.

One of the most difficult problems that confronted the courts was the disposition of minors, when the offense was so serious that the best interests of society would be subserved by incarceration. Through an arrangement with the superintendent of the workhouse, an unused wing of the building was set apart for such offenders, and in this way they were kept separate and apart from the old and hardened offender.

6. Restitution.

The criminal code of Indiana is absolutely silent upon the question of recovery for loss or damage to property and injuries to the person growing out of criminal acts, except that in cases of malicious trespass the court may fine a defendant a sum equal to twice the amount of the property damaged. To fine a person double the value of the property damaged and, because of his failure to pay the same, place the additional burden on the citizen of supporting him in the workhouse or jail seems in itself an absurdity.

As a part of the probation plan, the court required every person charged with any offense involving the loss or damage to property and injuries to the person to make full and complete restitution to the injured party before the final disposition of the case. Upon a proper showing that restitution has been made, the court was then in a position to take such action as the other facts in the case justified. Under this plan \$7,166.83 in restitution money was recovered and paid over to the proper parties.

7. Separate Session for the Trial of Women.

To Amos W. Butler and Demarchus C. Brown, of the Board of State Charities, was due the credit for the suggestion of a separate session for the trial of women and girls. Acting upon this suggestion, the court set apart Wednesday afternoon for the trial of such cases. To the Local Council of Women was due the credit of putting the suggestion into effect, by guaranteeing the expense of a woman probation officer for the court. To make the separate trials of women and girls something more than a perfunctory task an adequate system of investigating and supervision was absolutely essential. Like all innovations connected with matters pertaining to the work of the police, it was at first looked upon as a fad, and predictions were freely made that the life of the plan would be short because of the nature of the work and the rapidity with which it must be discharged. But notwithstanding the criticisms, it proved to be a sane and wholesome method of dealing with the delinquent women of the city.

The legislature of 1911 enacted a law, providing for the appointment of a court matron in cities of the first and second class, and this act prescribed her duties as follows: "She shall, under the direction of the judge of the city court, investigate and report to such judge upon the past histories, conditions of living, character, morals and habits of all women and girls awaiting trial in such city court and shall have supervision of such women and girls while not in actual custody until final disposition of the charges against them." As a result of this legislation a definite work is now being done throughout the State in aiding and assisting a class of women, heretofore most shamefully neglected.

The following report by Mrs. E. P. Hopkins, court matron, who has charge of the investigation and supervision of women during my term, tells its own story:

Total number of cases investigated	586
Judgment withheld	317
Fined	28
Committed to Women's Prison and Jail	61
Dismissed	90
Discharged	26
Continued indefinitely	38

Judgment suspended	19
Sent to Grand Jury	6
Committed to House of Good Shepherd	1

Of this number, 69 were placed on probation under the supervision of volunteer probation officers, and 72 were returned to their homes; 61 girls sent to the Faith Home were detained there until employment was secured for them. The most important work, however, of this department was the aid given to girls living in houses of prostitution. Through the special work in this connection, 23 girls gave up their lives of shame, and the reports show that they were all working and leading better lives.

8. Domestic Relations Session.

No more important problem was presented to the court than those cases involving domestic relations. The need for a change in the method of dealing stood, when one realizes the many things involved in the imprisonment of the head of the family, especially when there are many mouths to feed. In order to deal intelligently with these people and to arrive at a just conclusion, Thursday afternoon was set apart for their consideration. A thorough investigation was made by the court matron of the conditions surrounding the man, his home, his employment and his associates, and was presented to the court at this special session, to the end that in the final disposition of the case the same might be disposed of to the best interests of the family as well as the individual. Since the establishment of this session and up to the close of my term 440 cases were investigated, and were disposed of as follows:

Total number of cases investigated	440
Judgment withheld	155
Fines and costs	106
Workhouse and jail	34
Juvenile court	11
Dismissed	39
Discharged	27
Continued indefinitely	44

Grand Jury	6
Sentence suspended	18

9. Employment.

Through the probation department, the court attempted to meet every angle of the social problem as represented by the delinquents brought before the court. To the need of employment could be traced many cases of delinquency. To meet this condition, special efforts were made to obtain employment for men. From a crude beginning, it developed into a permanent plan, resulting in all of the larger employers of labor looking to the probation department for their help. More than 600 persons secured employment in this way.

In the presentation of a subject like this one realizes that the material side must always be at the forefront, but to one whose daily life was spent in the very midst of these problems, and who viewed them from every angle, there are many arguments that cannot be expressed in facts and figures. The problems presented by 49,916 persons brought into the court during my term were large and varied. To meet them was a gigantic task, but the results have more than justified the effort.

Any innovation in the administration of justice is the subject for more or less criticism, just and unjust. Did this work place additional burden on the taxpayer? Emphatically, No! It reduced the number of commitments to the jail and workhouse by more than 50 per cent. During the first year of its operation there was a saving in the cost of feeding prisoners in the county jail of \$1,293 and in the maintenance of the workhouse of \$4,631. However, the results of a system of justice are not to be measured by dollars and cents. Such a work aims at the physical, mental and moral uplift of the individual rather than at the cold satisfaction of the law. It aspires to restore the erring to society as useful citizens and transforms our penal system into a mighty influence for the uplifting of society.

The reports to the court showed that home conditions had improved; that men had abstained from the use of intoxicating liquors; that employers had been enlisted in taking a more friendly interest in employees; that men had joined churches and in other ways added to a higher standard of living.

This touch of humanity in the administration of justice in a criminal court was not only a profitable investment so far as the public was concerned, but better than all, it made possible the social regeneration of thousands of men and women.

THE INDUSTRIAL FARM

[1]

If results are ever obtained in the handling of unfortunates it will be through right treatment. There must be a thorough investigation before the stain of prison life sentence is passed. In a great percentage of the cases for minor offences, rather than a workhouse sentence, these unfortunates require nothing more than a dismissal with a friendly word of encouragement from the court. Or, if in the judgment of the courts they need supervision, they should be turned over to a practical probation officer who will see to it that it is not necessary to commit them to imprisonment. A prisoner should never be committed to jail to serve time. The average jails of this country are a disgrace to civilization and are cesspools for the breeding of diseases and crime. Many of the cases that come to the police and criminal courts for minor offences only require supervision, change of surroundings and a new home. Institutional treatment should be the last remedy. What we must do, is to abolish the fixed sentence and de-institutionalize our institutions, and, finally, these people must be made to feel whether in an institution or out of one they are working for home-making.

Modern penology must not be sentimental; it should be practical. Then we must have prevention, which is formation, not reformation; for 95 per cent. of our subjects in the penal institutions and reformatories of the country have never been correctly formed in their mental and physical make-up.

Modern penology, in order to aid social progress, must sentence its unkempt, immoral and diseased citizens to an indefinite term of sunshine, fresh air and honest work, with such system as will make of them an asset rather than a liability when returned to society. Modern penology must be able to say that if this cannot be done, then sterilization or definite isolation on the farm must be provided. Modern penology, in addition to all this, must impress upon society the importance of ideal administration for its wayward subjects; that of humane, educated and trained employees in all departments of our penal institutions.

We are attempting at the District of Columbia Farm to lay the foundation and inaugurate a system that will be practical, a system where the inmates will not suffer by having too much done for them, a system where the inmates must be made to feel, whether in an institution or out of it, that there is work for them to do individually.

We believe that beneficial results cannot be successfully maintained in the old-time prisons with high walls, locks and bars; we believe that walls must come down and the locks and bars go to the scrap pile. We believe that for every bar of restriction removed, more rays of sunlight and hope will reach the heart of the convicted man.

With these preliminary thoughts, I will now briefly describe the District of Columbia Farm, which less than four years ago was a wilderness in the hills of Virginia, 20 miles south of Washington, D. C. The farm consists of 1150 acres of land, costing the General Government \$18 per acre.

On this land we have constructed some 30 buildings, consisting of dormitories, dining rooms, lounging halls, hospital, horse and dairy barns. These are all one-story buildings, and are built of wood, with a view of giving ample light and ventilation. The plan for the prisoners is that of the congregate or dormitory system, having no cells, locks or bars about the institution. Two hundred prisoners are taken care of during the night in each dormitory, and as we have 600 male prisoners this requires three buildings. Cots are arranged side by side in these dormitories on raised platforms. Sufficient bedding, consisting of mattress, sheets and pillows, blankets and comforts are given to each prisoner. All the buildings are steam-heated and electric-lighted and have ample water, both hot and cold, in each of the buildings, with a modern and up-to-date sewerage system.

During the evening and after the days' work is done and on Sundays the men are taken to a large building known as the Rest Hall and Library, where they are permitted to talk, play checkers, read the daily newspapers, which are bought for them by the management, and they have access to a library of over 4,000 volumes. On summer evenings and on Sundays the inmates are permitted to take the benches out into the yard where it is possible to enjoy more freedom and have an abundance of fresh air.

In one of the buildings referred to there is a shower bath and arrangements where the inmates make their toilets. In this building 125 men can be taken

care of at one time. We have no wash basins, but have a faucet for each man, which makes it more sanitary, and the men are also furnished with individual towels and soap.

The fact that prisoners are sent to us for short sentences (the time now being from 15 days to three years, our average sentence being 35 days) makes it very necessary and important that the sanitary conditions should be closely looked after, as from 10 per cent. to 15 per cent. of the prisoners sent us, when received, have vermin on their persons. This however is looked after so closely that though we handle from five to six thousand people a year we are absolutely free from vermin in all of the 30 buildings.

In working prisoners we give them, from 15 to 20 men, to an officer. His part is to direct this number in a humane and intelligent manner, and to have them understand it is our purpose to be helpful. With such methods we have very little trouble so far as discipline is concerned.

Work on this 1150 acres of land consists of building roads, constructing buildings, farming, making brick, crushing stone, building and repairing wagons, painting and whitewashing the buildings, poultry raising, dairy, etc.

At the present time we are working 70 head of horses; these are all cared for by the inmates without an officer with them, and neither the farm or the buildings are enclosed by as much as a fence. We lose very few prisoners by escaping, less on an average than two per month. Our results show we get a fair day's work from each of our able-bodied inmates.

In handling prisoners for the past sixteen years, starting with the old-time methods of having a 30 foot wall, cells, locks and bars, with stripes for clothing (and a prisoner when reported by an officer for failure to comply with some order was taken into a room, his clothing removed and lashed with a cat-o-nine tails by the officer who reported him) convinces me that the open-air method, with as few restrictions as possible so far as the inmates are concerned, will give us better results from the standpoint of discipline and reformation.

We handle the women prisoners from the City of Washington with the same system of buildings as are provided for the men. The female department is managed by women and the two institutions are some distance apart. The

average population of the female department is about one hundred. The women do the laundry work and make the clothes for the population of the two institutions. In addition, a number of them work on the lawn and in the garden, and do the painting and other sanitary work about the buildings. The female department, like the male department, has neither cell, lock or bar; the buildings are one story with neither wall or fence around them. We have handled three thousand women in the past three and a half years and have only lost three by escaping.

We have very little sickness, and this we attribute to our method of work, sanitation, and to the construction of the buildings which give open-air treatment at all times with plenty of sunshine. Ninety-five per cent. of our inmates, both male and female, show decided improvement on their discharge both in their mental and physical condition.

The time is coming when the District of Columbia Workhouse will be self-supporting, if not more. When it is, I believe an appropriation should be provided whereby the dependent families of the inmates, whether they be sent to us because of non-support or for other violation of the statutes, should be paid a sum of money sufficient to provide in a comfortable manner for their support during the confinement of the offenders. If such a system were inaugurated, the financial benefit received by the family would only be a secondary consideration. The greatest benefit would be the lasting impression made on the individual while at the institution, developing in him industrial habits and self-confidence, which would help him to become a self-supporting citizen, capable of caring for his family after he is released. This certainly would be true in 60 per cent. of the cases we have, if there could be brought about a change in the penal code of the District of Columbia through having the inmates committed on an indeterminate sentence rather than on a fixed sentence such as is now being given.

[1] Read by W. H. Whittaker, Superintendent of the (Occoquan) District of Columbia Workhouse, at National Conference of Charities and Correction, Memphis, May, 1914.

A PRISON OF THE TWENTIETH CENTURY

BY O. F. LEWIS

General Secretary of the Prison Association of New York

[Reprinted from The Independent of May 18, 1914.]

The three-car train came out of the Canadian woods from the south and stopped by the stationless road. Twenty-five young fellows jumped down, formed in twos, and, led by an older man, and followed by two older men, walked up the road over the concrete bridge to the prison buildings. They were prisoners, convicted of crimes and serving time. That morning they had left the Central Prison of Toronto—left the forbidding old building, with its bolts, its gloom, its cells and corridors; and now, but a few hours later, they were hastening without shackles, without armed guards, without prison garb, toward the latest Canadian prison, the Central Prison Farm of Guelph.

This means a new era, this method of treating prisoners—an overturning of the old traditions of prison government, a serious break with the past, an almost scornful disregard of the cherished traditions of bars and cells, tortures and punishments. It means an amazing change in the attitude of society toward the prisoner, and a startling change in the feeling of the prisoner toward society.

You have read in recent months about the mutinies at Sing Sing in New York State; how the prisoners have been for almost a century forced into atrociously small cells, with insufficient light and air. You have read how prisoners have been doubled-up, two in a cell, because of the congestion of population. You have learned that prisoners have had to stay in their cells some fourteen hours out of the twenty-four; that these cells are carriers of tuberculosis and venereal disease. And many other terrible things you have read.

In the light of that story, hear this tale of a prison farm.

When I alighted from an earlier train I looked for Warden Gilmour in vain. In the road stood a man in civilian's clothes. "I'm Sergeant Grant," said he, "and the warden was to come on this train. He'll come later, though, with the draft." We walked toward the prison. On the way we crossed an attractive concrete bridge. "All built by prisoners," said the sergeant, "and we had hard work to find the bottom for some of the piers. We made this macadam road, also graded up the approaches to the bridge, designed the balustrades, and even hydrated the lime that went into the concrete, after having quarried it from the limestone quarries up there."

Approaching the prison I looked for the wall and found none. Not a thing apparently, to prevent the men from running away. I asked the sergeant how many escapes they had. "About one and a half per cent. of the population. We've lost from three to five this year. Fact is there's nothing in the way of guns to prevent the men from breaking away any time. There isn't a guard here that carries a revolver. The warden says: 'We haven't taken away the guns from the guards, because we haven't ever given them guns!' As a matter of fact, I carry a revolver," said the sergeant, "but I've never used it in eighteen years. But I feel more comfortable with it." Which made me smile, because it was an example of an age-long tradition dying hard.

The dinner whistle blew at 11:45. Here I saw what in the old-line prison would be the unbelievable. From all parts of the farm came the men in to dinner. It was the reverse of the usual factory procession. Here the crowd poured into the door of a factory building temporarily used as a dining-room and kitchen. There was absolute order. The garb was not unlike that of the average farmer's helper. Even the customary vizored cap of many prisons was absent, and the old straw hat had taken its place. On the tables, for dinner, were meat and vegetables, tapioca, soup and milk—a liberal amount.

Meanwhile Warden Gilmour had arrived with his detail of prisoners. He has been in prison work for seventeen years; before that he was a physician. He is regarded as one of the best prison administrators in the country. He loves the land, not for what it produces alone, but in humanity also. The frequency, moreover, with which bits of biblical quotations drop from his lips leads one to believe that the injunctions of Holy Writ form a considerable part of his sanction for life, and for that of the men in his charge. There is nothing mawkish or apologetic in his adherence to Holy

Writ as a guide. There is a certain severity of viewpoint in his daily work. Nothing is happy-go-lucky about the Guelph Prison Farm; it has all been thought out, and the warden is the dominant personality.

“Remember,” he said, “this is not run on honor, this prison. I don’t believe in the so-called honor prison, as the word is generally understood. This is a prison that is successful because the supervision is successful. Supervision will do what formerly guns and wall accomplished.

“We talk about the originality of a prison like this? Why, originality consists in doing what other people are afraid to do. I have not been afraid to build this prison without walls. But we are everlastingly watchful. Thirty miles east of Toronto, at Whitby, I have a hundred prisoners building an asylum for the insane on the cottage plan. The plaster, the lime, the sashes and the window frames are shipped from here. Here at Guelph we can perform with prison labor more than seventy-five per cent. of the building operations.

“Punishments? We don’t have them here. That is, if a prisoner gets bad here, disturbs the order of the place, and we cannot make him see that he must conform to the rules, we send him back to the Central Prison at Toronto. But most of the men prefer the life out here a thousand times. We take men that generally have still some months to serve. We have been taking men whose sentences run up to two years, but more recently we have received men with longer sentences. Let me tell you about one man who was here.

“I asked this boy, some time ago, who had been in the Toronto prison, what he found the greatest difference between the prison in the city and the farm out here. He said, ‘Warden, the getting away from that cell! To sit there,’ the boy added, ‘on Sunday, every evening and on holidays, and have that cell gate staring you in the face, is hell!’”

We walked toward the new building—all of them being built by the prisoners. Under construction, in a kind of hollow square formation, were kitchen and dining hall, several dormitories and cell buildings, an administration building and officers quarters. One of the largest and best dairy and hay barns that I have ever seen is already up; also a little creamery building. Most of the work is of poured concrete.

As we went through one building, where some score of prisoners were silently working at plastering, painting, carpentering and stone cutting, Warden Gilmour said: "You see, I have my cells only on one side of the central corridor. I mean that all the cells shall have southern exposure. Each of the cells contains eight hundred cubic feet."

I thought of the twelve hundred cells at Sing Sing, still used, which contain less than two hundred cubic feet of air space, and have no windows opening to the outer air as at Guelph.

"Then we have dormitories," continued the warden, "not the big dormitories of olden times, but comfortably small rooms that will accommodate from twenty-five to thirty men. We are trying the experiment. I don't know yet how it will work out. We are expecting to have here ultimately about seven hundred men."

I asked him about the expense of all this. "Are you saving money or saving men?" was his sharp retort. "Nevertheless, we are demonstrating every day the economy of using prison labor, as well as the economy of giving these men reasonable accommodations. I can't give you as yet the figures you want. We are teaching these men how to work, and the usefulness of work. The bulk of them, when they leave here, are not going upon farms, but back to the cities from which they came. So we are teaching some city trades, but without neglecting farm industries. We are raising about all we need to eat, as well as the stock we raise for food. But a prison farm without important and diversified industries is a mistake."

I looked around the eight hundred acres. There was a sweep of horizon, a tingling acid in the air, a quietude, a blessed monotony in comparison with the feverish city, a spaciousness of possibilities, as compared with the walled-in prisons like Sing Sing; in short, an approximation to the sanest kind of normal life.

"Work?" The warden smiled. "Why, we're working here ten hours a day; seven to twelve, one to six. Each man that works here gets a gratuity of two dollars a month, but he loses a part of that gratuity if he offends against the rules of the place. They get the money when they go out. Our payments to prisoners amount to between one hundred and fifty and two hundred dollars a month. We discharge each month about thirty to forty men. They get, in addition, a ticket back to the place from which they were sent."

I asked the warden if he was ultimately going to build a wall around the place. "Not if I can help it. I don't think bars on cell windows are necessary; but supervision is. However, we may as well proceed with reasonable speed in our modern ideas. Ultimately we may need the protected windows."

For the completed prison, Warden Gilmour is planning a number of industries, all directly related to the life of the institution. There will be tailoring, carpentry, shoemaking, a woolen mill, a machine shop, a tile factory and other industries. And as for recreation, plans are not failing. There is already a ball team that has beaten, with one exception, all the teams that have come from the surrounding towns. There is fishing and swimming in case of good behavior. And when the warden gets the prison all built, he is going to turn much of the land, which is not used for farming, in to a kind of natural park.

Up there, across the line, some thirty miles north of Lake Ontario, where the summer heat gets into the nineties, and the winter cold sends the bulb down to thirty and more below, there is going to be a radical overturning of old prison regime. Inevitably the influence of Guelph and of a dozen other prisons in the "States" will send the walls of the older prisons crumbling. For Guelph means nothing else than a reversal of the theories of prison administration.

The old prison believed in dungeons and bars. The new prison substitutes therefor single rooms and God's outdoors. The old prison feared an escape like the plague. The new prison forces an escape into its proper perspective as a serious episode in the training of the prisoner for honest life. The old prison shut out life and hope by monstrous walls. In the new prison, walls for all prisoners are regarded as monstrous things. The old prison drove men like brutes to work and often to mutiny. The new prison blows the whistle at noon, and the men come in from all over the farm to dinner, and go to their rooms or to the dormitories afterward for a short rest, and then back to normal work. The old prison—and there are many of them still—believed in squeezing the life blood out of the prisoners for the benefit of the State and of private contractors. The new prison believes in the working of the men for State profit, if for profit at all. And the modern chiefs of new prisons are giving sober attention to a fairer division of the profits of prisoners' labor between the prisoner and his compulsory employer, the government.

The old prison believed in wretchedly small cells, in a minimum of fresh air, in messes of poorly prepared food; in the lock step, the stripes and the shaven head; in punitive methods. The new prison believes in an ample cell and an outdoor life so far as possible; in decent food, the abolition of the lock step, a decent head of hair and a decent uniform—in reformation, if possible.

As to the future, who can tell? The new prison is an experiment. So far, it has worked in general remarkably well. Its sanction lies in the fact that it makes on the average mind the impression of being a common-sense proposition.

BOOK REVIEWS

Young Delinquents.—Mary G. Barnett, London 1913, Methuen and Co. Ltd., pp. 222.

Miss Barnett's book is a very clear exposition of the British system of Industrial and Reformatory Schools for taking care of children fallen, or in the danger of falling, into criminal ways. As such an exposition it very properly gives, after a few introductory statements as to the chief causes of juvenile delinquency, the legal basis of the system at present in vogue which is found in the Children's Act of 1908, by which the existing schools and their accessories take their proper places in the scheme provided or sanctioned. Thus far the book is merely the description of the fundamental determinants, in a legal way, for a particular place—Great Britain. With the description of the schools themselves, their physical conditions, financing, management, difficulties of personnel, discipline, methods of elementary, industrial and religious education, of social training, of employment, inadequate facilities of proper aftercare, the methods of administration of single institutions and of the whole system of institutions, their inspection, and a horde of other things, we get into territory that is as pertinent to our own problems in this field as it is across the sea. The book shows that the author has had an extended and intimate acquaintance with her subject, and has made good use of her gift of observation. As one would expect, there are numerous weaknesses in the system for which remedies should be found. Such suggested remedies are included in the last chapter of the book, in a resume of the findings and conclusions of the Departmental Committee appointed in 1911 to look into the matter of these schools. To give a complete list of all the recommendations of that committee would be out of place here. But its most important features should be, if only briefly, mentioned. First appears the need for a special central authority, expert and responsible, to set a standard and maintain it; there should be woman members on the boards of managers; employees should be properly pensioned. The chief cause of unsatisfactory conditions is found to be inadequate finances. In reference to the children themselves, the principal demands are for more intensive classification, particularly by age, more

education, especially physical training, less drudgery, less punishment, more individual attention. Definite methods for rendering reports, for extending after-care, for utilising voluntary aid are suggested, and the uselessness is shown of some of the petty yet harmful restrictions, as for example silence at meals.

Miss Barnett discusses conditions in a different land, but the greater part of her discussion can be applied directly to our own conditions. The book should be in the hands of every member of the board of managers of a reform school.

P. K.

Prostitution in Europe. Abraham Flexner, New York, The Century Co., 1914. Publication of the Bureau of Social Hygiene. Pp. 455.

A splendid contribution to the subject, especially useful to American penologists and criminologists, who have been obliged to put up with sporadic and often inaccurate reports of this very important and social evil in Continental countries. Mr. Flexner promises a study shortly of prostitution in the United States. Let us hope that it will meet the high standard of the work under discussion. It is almost trite to say that no library of a social worker should be without this book. Mr. Flexner's treatment is dispassionate, careful, thorough, and broad. He has persistently gone after the facts. The book is commendably free from propaganda. He defines prostitution, discusses the demand and supply, and after showing the relation of prostitution to law and law enforcement gives several chapters to the discussion of regulation, after which he treats with equal detail the method of treatment commonly called "abolition". The last chapter, summing up the outcome of European experience, is for Americans cognizant of the many surveys of the social evil in American cities, of especial interest and importance. "Prostitution is a modifiable phenomenon, arising out of the complicated interaction of personal factors and social conditions. The attempt to stamp it out completely by summary, even though persistent action, cannot be hopefully regarded. Repression requires an abundance of institutional facilities such as nowhere exists. Although

important good is achieved at the moment (by repression) and still more in the long run, prostitution as a formidable problem will still remain. Repression is what the physicians call symptomatic treatment.”

Nevertheless, Mr. Flexner, having shown that “regulation” does not regulate, and that repression does not wholly repress, says in conclusion that a direct frontal attack in the repressive spirit would accomplish much. “It is well worth doing; it is, humanly speaking, a possible undertaking. Let us not, however, deceive ourselves into thinking that such a frontal attack absolves us from effort in other and different directions. Further achievements depend upon alterations in the constitution of society and its component parts.” And after outlining the important social factors that make for prostitution, such as ignorance, mental or moral defect, natural impulses, alcohol, illegitimacy, broken homes, bad homes, low wages, wretched industrial conditions—and their potential offsets through education, religion, science, sanitation, enlightened and far-reaching statesmanship, he continues: “Civilization has stripped for a life-and-death wrestle with tuberculosis, alcohol and other plagues. It is on the verge of a similar struggle with the crassest forms of commercial vice. Sooner or later, it must fling down the gauntlet to the whole horrible thing. This will be the real contest—a contest that will tax the courage, the self-denial, the faith, the resources of humanity to their uttermost.”

O. F. L.

Why Crime does not Pay. Sophie Lyons. J. S. Ogilvie, New York. pp. 268.

A series of not uninteresting sketches of alleged actual adventures in crime by one who claims to have been called the “Queen of the Bank Burglars”. The publishers call her the most remarkable and greatest criminal of modern times, a thief from the cradle. The burden of the stories is that crime does not pay. She was associated with a number of noted bank burglars, among them Ned Lyons, her husband, and George Bliss, alias George White, who some half dozen years ago published a strikingly well-written narrative of his own criminal career, entitled “From Boniface to Bank

Burglar". Mrs. Lyons' stories are circumstantial and give detail accounts of daring and often successful burglaries.

O. F. L.

A History of Penal Methods.—George Ives. Stanley Paul and Co., London, 1914. pp. 409.

A distinct contribution and a distinct disappointment. The amount of research into the most diverse authorities is remarkable. For chapter after chapter practically every sentence is annotated by reference to the authority from which the fact is culled. The earlier chapters are relatively full, and even laboriously worked out. The early methods of compensation, of torture, of banishment, transportation, etc., are fully treated—but almost entirely from the standpoint of English experience. Rarely does one find so pretentious a book so insular in its actual scope. The student desirous of knowing how penal methods developed in France, or Germany, or the United States would be at sea, save for the most occasional reference. And when we come to the developments of the English penal system itself since the 70's of the last century, we obtain little. The reader, ignorant of recent English development, would be very unclear at the end. There is little about the treatment of juvenile adults, the Borstal system, the preventive detention plan, the development of the work for discharged prisoners, and other important and almost epoch-making innovations. In short, instead of having a book that, on the basis of past penal methods, studies illuminatingly the most recent developments, we have a book of distinct value for early English penal history.

O. F. L.

Causes and Cures of Crime.—Thomas Speed Mosby. C. V. Mosby Co., St. Louis, 1913. Pp. 354.

Because the “cost of crime in the United States now amounts to one-third the total cost of the Government, and because the burden is yearly increasing”, Mr. Mosby has made a careful compendium of the statements of many authorities, including his own opinions, on the subject of the book. The reader finds the little volume a useful manual. Etiology, prophylaxis, and therapeutics are the logical divisions of the subject. The specialist will find little that is new; the student will be grateful to Mr. Mosby for getting so much together in available form. Like most writers of today, the author has little use for the traditional penitentiary system. The book is not a quick, hastily-compiled potpourri of what other people happen to say; it is a carefully selected collection of material that we all want to have handy. And what Mr. Mosby himself contributes is not a small part of the product.

O. F. L.

Beating Back.—Al Jennings and Will Irwin. Appleton's, New York, 1914. Pp. 355.

A most readable narrative of the career of the “famous train robber”, Al Jennings, who figured in a number of holdups and subsequently in the Ohio State Prison and the Federal Prison at Leavenworth as inmate, and still later as candidate for county attorney in Oklahoma, and now as candidate for Governor of Oklahoma. Will Irwin has edited the autobiography, and it reads many times better than the old-style “From Log Cabin to White House” literature, besides being very human, and, to penologists, more than interesting. Here is a man that, according to his story, did not start out along criminal lines, but through force of circumstances and considerable of a temper, swung into crime in woolly Western days. He was finally caught, imprisoned, underwent the pretty rigorous penitentiary discipline of Ohio and Kansas, and discovered the importance of being honest. The tale is as good as a novel of adventure; more moral than many a didactic screed; and more just to prison regimes of the older days than many a diatribe of a narrow-visioned reformer.

O. F. L.

NOTES.

The most “innovating” sheet of the Umpire is that on which the schedule of baseball games, to be played this season at the Eastern Penitentiary, is given. The following clubs are included: “Cubs, Ninth, Shed, Band.” There are both home games and games on other grounds, but all within the prison yard. Total number of games to be played, 56. Contracts, protests, violations of agreements, ground rules, limitation of number of players carried by each club, limitation by ground rules (ball lodging on the roof to be counted for two bases only), furnishing of balls by the home club, etc., are all down in black and white. Good luck to the series! This is the institution that started by adopting solitary confinement in all its severity. Even now the Pennsylvania system is treasured as a great historical fact in Europe, and most continental prisons are built largely on the architectural model of the old penitentiary. How long will it be before the European prisons adopt the new Pennsylvania methods?

Hereafter all executions in the State of New York must take place at Sing Sing prison.

The first monthly report of Charles H. Girardeau, who was named warden following the recent shake-up in the county convict camps of Georgia, shows that whippings under the new regime have been reduced by more than 50 per cent. He admits the truth of the report that the food served the convicts was bad in some instances and makes a number of recommendations for further reforms in the system.

The sale of convict labor to private contractors was condemned by the investigators of the Chicago efficiency division of the city service commission, who report that labor which sold for 38c. a day was worth 97c. a day to the city.

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There are no bondholders, mortgages, or other security holders. O. F. LEWIS, Editor and Business Manager.

Sworn to and subscribed before me this 30th day of September, 1913.

H. L. McCORMICK, Notary Public No. 6, Kings County.
My Commission expires March 31, 1914.

Transcriber's Notes

A number of typographical errors were corrected silently.

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*** END OF THE PROJECT GUTENBERG EBOOK THE
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